
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

THE MINISTERIAL POLICY ARM ACT 2026

Bill 29 of the Order Paper of the Realm

Long title

An Act to codify, as law, the policy-arm process the realm has been operating: to provide that every ministry holds a policy arm, being a function to develop policy within its own domain (a policy paper or briefing), on its own initiative or on a commission from the Principal, the policy arm proposing and never legislating; to provide that a ministerial policy proposal is referred to the Standing Committee on the Laws of the Realm for drafting, the Committee being the sole drafter of the resulting bill or statutory instrument and the Sovereign the sole enactor, so that no ministry may enact its own policy and capability is not authority; to provide that a policy proposal raising a genuine first-impression fork is referred to the court before drafting, and not resolved by the ministry or the Committee; to confirm the public-mechanics and principles-at-law division, that a policy proposal's mechanics and principles are public while the operational facts a policy relies on stay in the ministry's private registry; to provide that, once enacted, the owning ministry implements and remedies the instrument as engineering it owns, the force coming from the enactment and not from the ministry; to amend the Ministries and Offices Act 2026 (Bill 5) by inserting a policy-arm function section, and the Legislature of the Realm Act 2026 (Bill 2) by inserting a policy-referral intake route; and for connected purposes.

(No preamble. This Act recites its constitutional basis in section 3; it re-mints no power not already held under the constitution and creates no enactor not already established.)

Short title

- This Act may be cited as the **Ministerial Policy Arm Act 2026** (Bill 29).

Commencement

- (1) This Act comes into force on Royal Assent by the Sovereign Founder (2026-06-06).

(2) The amendments to Bill 5 (section 6) and to Bill 2 (section 7) take effect on Royal Assent of this Act and are read into those Acts on the append-with-supersede rule; the inserted sections replace

nothing and add the policy-arm function and the policy-referral intake route to the existing text from that date forward.

Constitutional status

- (1) This Act is an **ordinary Act of the Realm**, subordinate to the Acts of Union 2026 (Bill 1) and to the entrenched articles of CASE-LAW (ss. 1, 2, 3, 9, 10, 13, 14), and **void to the extent of any conflict**.

(2) This Act confers **no power not already held under the constitution**. It creates no new enactor, no second drafter, and no free-standing ministerial law-making power. It is declaratory and machinery: it records, as enacted law, the policy-arm process the realm has been operating, and routes it through organs already constituted (the ministries under Bill 5; the Standing Committee and the Sovereign under Bill 2; the courts under Bill 3 and CASE-LAW).

(3) Nothing in this Act amends, qualifies, or supersedes any entrenched article of CASE-LAW by implication. The line this Act draws (the ministry proposes; the Committee drafts; the Sovereign enacts; the court resolves a first-impression fork) is the line already drawn by CASE-LAW s. 3, by Bill 2 s. 7(2) and s. 21, and by [2026] REALM-SC 8; this Act states it on the face of the statute book so the policy-arm process is itself clear by access (CASE-LAW s. 1).

Part 1 - The policy arm

4. Every ministry holds a policy arm

(1) Every ministry and executive department holds a **policy arm**: a function to **develop policy within its own domain**, expressed as a **policy paper or briefing**, on its own initiative or on a **commission from the Principal** (the Founder acting as Prime Minister, CASE-LAW s. 2).

(2) The policy arm is the ministry's advisory and advocacy function in its field: it identifies a need, analyses it against the enacted law and the binding precedent, and proposes what the law should be. Authorship of a policy proposal is the advocate / advisor function (CASE-LAW s. 3), not an exercise of law-making power.

(3) **The policy arm PROPOSES; it does not legislate**. A policy paper or briefing is **not an instrument of law** and carries no operative legal force on its own account. It is a proposal that founds an obligation in no one until it is drafted by the Standing Committee and enacted by the Sovereign. A ministry that purported to give its policy operative force by its own act would be acting ultra vires, and the purported act would be void (Bill 5 s. 3; Bill 14 s. 9; [2026] REALM-SC 8).

(4) The policy arm is bound by the duty of reasonable skill and care in developing policy (CASE-LAW s. 5; s. 7); a policy proposal below that standard is remedied by making it good, never by

punishment (CASE-LAW s. 6).

5. Referral to the Standing Committee; the Committee drafts and the Sovereign enacts

(1) A ministerial policy proposal is **referred to the Standing Committee on the Laws of the Realm** for drafting into the resulting bill or statutory instrument, by the intake route inserted into the Legislature of the Realm Act 2026 (Bill 2) by section 7 of this Act.

(2) The **Standing Committee is the sole drafter** of the resulting bill or statutory instrument, and the **Sovereign is the sole enactor** by Royal Assent (CASE-LAW s. 2, s. 9; Bill 2 s. 7(2), s. 21; Bill 27 s. 5C; [2026] REALM-SC 8). A ministry may not draft the authoritative text of the instrument that gives its policy effect, and may not enact it.

(3) **A ministry may not enact its own policy; capability is not authority.** That a ministry has the competence to write a draft, or the operational capability to act, confers no authority to give its policy the force of law (Bill 5 s. 3; Bill 14 s. 9; Bill 18 s. 3; [2026] REALM-SC 8). The authoritative text of a bill or statutory instrument is the Committee's (drafting) and the Sovereign's (enactment); it is never the ministry's on its own account. A policy paper that asserts its own operative force is void as an instrument from issue and is admissible only as a proposal that the Committee may take up (Bill 14 s. 9; [2026] REALM-SC 8).

6. First-impression forks go to the court before drafting

(1) Where a policy proposal raises a genuine **first-impression fork** (a design or constitutional question not settled by enacted law or binding precedent), the fork is **referred to the court before drafting**, and is **not resolved by the ministry or by the Standing Committee**.

(2) Before referral, the citator (CASE-LAW s. 11(c); the citator index) is checked: where a binding ratio is on all fours, the proposal follows it and cites the ruling, and the fork is not re-litigated. A genuine first-impression fork (one the citator does not settle) is referred to the court of first instance for the question (the Privy Council where the question is constitutional), and the proposal is held pending the answer (Bill 2 s. 15, s. 18; CASE-LAW s. 13, s. 20).

(3) The court resolves the fork; the Standing Committee then drafts on the holdings, and the Sovereign enacts. The drafting is the Committee's and not the court's pen, and not the ministry's (CASE-LAW s. 3(2) to s. 3(7); [2026] REALM-SC 8). The worked example is the agent-security forks: the Ministry of Data Security referred its five open forks to the Privy Council, which resolved them in [2026] REALM-PC 13, and the Standing Committee then drafted the Agent Security Instrument 2026 ([2026] REALM-SI 5) on those holdings.

7. Public mechanics and principles; private facts

(1) A policy proposal's **MECHANICS and PRINCIPLES are public**: the need it identifies, the principle it proposes, the schema and the governance rule it would set, and the reasoning that

supports it, are public and suitable for reproduction by any agent or user with access to the realm (Bill 27 s. 5A; the public-mechanics rule).

(2) The **operational FACTS** that a policy relies on or that give it effect (the concrete per-instance configuration, the named keys, tokens, signers, thresholds, windows, endpoints, hosts, and tenants, and the per-agent or per-project operational detail) **stay in the owning ministry's private registry**, off the face of the proposal and off the face of the resulting instrument (Bill 27 s. 5A(3); the principles-at-law rule; Bill 22). The principle and the schema are public; the facts are private.

(3) Accordingly a policy proposal, and the instrument it becomes, holds **principles only and no operative facts**; the facts by which the principles are given effect are maintained by the owning ministry in its private operational registry, governed by the Data, Disclosure and Confidentiality Act 2026 (Bill 22) and the public-mechanics rule (Bill 27 s. 5A).

8. Implementation by the owning ministry; the force is in the enactment

(1) Once the resulting bill or statutory instrument is **enacted**, the **owning ministry implements and remedies** it as **engineering it owns** (Bill 27 s. 5B): it maintains the operational expression of the instrument, wires the machine-checkable controls into the deterministic gate, and remedies any defect, as part of the engineering committed to it.

(2) The implementing mandate is **operational, not law-making and not adjudicatory**. It confers no power to author, amend, or enact the authoritative text of the instrument, to find a breach as a binding fact, or to sanction; the ministry operates, audits, and refers, and adjudication is reserved to the single judiciary (Bill 5 s. 5; Bill 21 s. 5, s. 6; Bill 27 s. 5B(5); [2026] REALM-SC 8).

(3) **The force comes from the enactment, not from the ministry**. The instrument binds because the Sovereign enacted it on the Committee's draft, not because the ministry implements it; the source of an artefact's force is who promulgated it, and that is the Sovereign and the Committee, never the implementing hand ([2026] REALM-SC 8, the source-of-force test; Bill 27 s. 5B(3)).

Part 2 - Amendments

9. Amendment to Bill 5 (Ministries and Offices Act 2026): insertion of the policy-arm function section

In the Ministries and Offices Act 2026 (Bill 5), after section 18 (Ministry naming and designation, inserted by section 6 of the VJS (Constitution and Machinery) Act 2026 (Bill 27)), insert:

"### 19. The policy arm of a ministry

(1) Every ministry and executive department holds a **policy arm**: a function to develop policy within its own domain, expressed as a policy paper or briefing, on its own initiative or on a

commission from the Principal (CASE-LAW s. 2). The policy arm is the ministry's advisory and advocacy function in its field (CASE-LAW s. 3).

(2) The policy arm **proposes and does not legislate**. A policy paper or briefing is not an instrument of law and carries no operative force of its own (s. 6(1) model). It is referred to the Standing Committee for drafting under the intake route in the Legislature of the Realm Act 2026 (Bill 2 s. 13A); the Committee is the sole drafter and the Sovereign the sole enactor (CASE-LAW s. 2, s. 9; Bill 2 s. 7(2), s. 21; [2026] REALM-SC 8).

(3) A ministry may not enact its own policy. **Capability is not authority** (s. 3): the competence to write a draft or the capability to act confers no authority to give policy the force of law. A purported ministerial enactment of policy is ultra vires and void (s. 3, s. 4; Bill 14 s. 9).

(4) A policy proposal's mechanics and principles are public (Bill 27 s. 5A); the operational facts a policy relies on stay in the ministry's private registry (Bill 27 s. 5A(3); Bill 22). Once the resulting instrument is enacted, the owning ministry implements and remedies it as engineering it owns (Bill 27 s. 5B), the force coming from the enactment and not from the ministry ([2026] REALM-SC 8)."

10. Amendment to Bill 2 (Legislature of the Realm Act 2026): insertion of the policy-referral intake route

In the Legislature of the Realm Act 2026 (Bill 2), in Part 4 (the legislative procedure), after section 13 (The declared topic and the single drafting round), insert:

"### 13A. Ministerial policy-referral intake

(1) A ministry develops policy through its policy arm (Bill 5 s. 19) and **refers a policy proposal to the Standing Committee** for drafting. The referral is an intake to the pipeline of section 12: the policy proposal supplies the **declared topic** (section 13(1)), and the Committee drafts the resulting bill or statutory instrument in the single drafting round (section 13(2)).

(2) The Committee is the **sole drafter** of the resulting instrument and the Sovereign the **sole enactor** (section 7(2), section 21; CASE-LAW s. 2, s. 9; [2026] REALM-SC 8). The referring ministry does not draft the authoritative text and does not enact; the policy proposal is a proposal only, carrying no operative force on its own account (Bill 5 s. 19; Bill 14 s. 9).

(3) Where the policy proposal raises a genuine **first-impression fork** (a design or constitutional question not settled by enacted law or binding precedent), the Committee does not resolve it and the ministry does not resolve it; the fork is **referred to the court before drafting** on the escalation ladder (section 15, section 18; CASE-LAW s. 11(c), s. 13, s. 20), and the proposal is held pending the answer. The Committee drafts on the court's holdings (the worked example: the agent-security forks resolved in [2026] REALM-PC 13 before the Committee drafted [2026] REALM-SI 5).

(4) A policy proposal's mechanics and principles are public and form part of the open record; the operational facts a policy relies on stay in the owning ministry's private registry and are not brought

onto the face of the resulting instrument (Bill 27 s. 5A; Bill 22). Once enacted, the owning ministry implements and remedies the instrument as engineering it owns (Bill 27 s. 5B), the force coming from the enactment and not from the ministry."

Part 3 - Savings

11. Savings and supremacy

(1) This Act is subordinate to the Acts of Union 2026 and the entrenched articles; **void to the extent of any conflict**; it amends no entrenched article by implication. It creates no new court, tier, apex, citation series, or jurisdiction (CASE-LAW s. 14, s. 22), and no new drafter or enactor (Bill 2 s. 3).

(2) Where this Act names a regime owned by a sibling Act, this Act **locates** and the owning Act supplies the standard and machinery; it creates no second governing rule (Bill 5 s. 17 model; Bill 2 s. 3(4)). Each provision is severable; a provision read to touch an entrenched article is void to that extent.

END OF ACT

Committee note

Bill 29 is reported by the Standing Committee as a short codifying Act. It writes into law the policy-arm process the realm has already been operating (the worked example is the Ministry of Justice's deterministic judgment render-and-lodge briefing, which became [2026] REALM-SI 2, and the Ministry of Data Security's agent-security paper, whose forks went to [2026] REALM-PC 13 before the Committee drafted [2026] REALM-SI 5). The four Counsel reconciled their memos into a single lean draft addressing the five elements given:

- **POLICY ARM** (s. 4; inserted Bill 5 s. 19): every ministry holds a policy arm to develop policy in its domain, on its own initiative or on a Principal commission; it proposes and does not legislate.
- **REFERRAL; COMMITTEE DRAFTS, SOVEREIGN ENACTS** (s. 5; inserted Bill 2 s. 13A): a ministerial proposal is referred to the Committee, the sole drafter; the Sovereign is the sole enactor; a ministry may not enact its own policy; capability is not authority (Bill 27 s. 5C; Bill 2; Bill 14 s. 9; [2026] REALM-SC 8).
- **FIRST-IMPRESSION FORK -> COURT** (s. 6): a genuine fork goes to the court before drafting, not to the ministry or the Committee (the [2026] REALM-PC 13 -> [2026] REALM-SI 5 worked example).
- **PUBLIC vs PRIVATE** (s. 7): mechanics and principles public; operational facts in the ministry's private registry (Bill 27 s. 5A; principles-at-law rule).

- **IMPLEMENTATION** (s. 8): the owning ministry implements and remedies the enacted instrument as engineering it owns (Bill 27 s. 5B); the force is in the enactment, not the ministry ([2026] REALM-SC 8, source-of-force test).

The Act amends by express insertion, citing the section in each case: a new Bill 5 s. 19 (after the s. 18 inserted by Bill 27 s. 6) and a new Bill 2 s. 13A (in Part 4, after s. 13). It mints no new power: it is declaratory of CASE-LAW s. 3, Bill 2 s. 7(2)/s. 21, and [2026] REALM-SC 8, and machinery routing an existing process through existing organs.

Vote record

- **Counsel Aldous (Restraint): AYE** - The Act earns its length. It does one load-bearing thing (codify the policy-arm process) and does it by two express insertions plus a thin Part stating the rule, citing rather than restating the courts and the enactment pipeline. I pressed to cut the savings Part to a single clause and won s. 11 down to two subsections; I pressed to drop Part 1 as mere recital of Bill 2 and REALM-SC 8 and lost, rightly, because the realm asked for the process stated on the face of the statute book (s. 3(3)), and the inserted sections need a home Act to carry them. No free-standing ministerial power is granted; capability-is-not-authority is stated three times only where it is load-bearing (s. 4(3), s. 5(3), inserted Bill 5 s. 19(3)). No bloat. It has my assent.
- **Counsel Verity (Codifier): AYE** - Structurally complete and every cross-reference lands. The five elements map one-to-one to ss. 4 to 8 and are reciprocated by the two inserted sections (Bill 5 s. 19, Bill 2 s. 13A), which cite each other and the home pipeline (Bill 2 s. 12, s. 13, s. 15, s. 18, s. 21). The insertion points are exact: Bill 5 s. 19 follows the s. 18 that Bill 27 s. 6 inserted after Bill 5 s. 17; Bill 2 s. 13A sits in Part 4 after s. 13 (the declared topic), so a referral is an intake to the existing state machine, not a new pipeline. The authority chain is transparent: Committee drafts (Bill 2 s. 7(2)), Sovereign enacts (Bill 2 s. 21; Bill 27 s. 5C), forks to the court (Bill 2 s. 15, s. 18), with [2026] REALM-SC 8 and the [2026] REALM-PC 13 -> [2026] REALM-SI 5 worked example cited on point. No fork in the Act itself; no dangling reference. It has my assent.
- **Counsel Marlowe (Guardrail): AYE** - The Act is a cage, not a grant. It bars a ministry from enacting its own policy (s. 5(3); inserted Bill 5 s. 19(3)), routes every first-impression fork to the court before drafting and out of the hands of both the ministry and the Committee (s. 6), and locates the force of the resulting instrument in the enactment and never in the implementing ministry (s. 8(3)). The implementing mandate is expressly operational, not law-making and not adjudicatory, with adjudication reserved to the single judiciary (s. 8(2)). The public/private line is drawn correctly: mechanics and principles public, operational facts private (s. 7), so the policy process is open by access while the facts stay sealed (Bill 27 s. 5A; Bill 22). The duty of care binds the policy arm and the only remedy is to make good,

never to punish (s. 4(4)). No new coercive power; the separation of powers is preserved. It has my assent.

- **Counsel Drummond (Pragmatist): AYE** - It runs on the rails already built. A referral is a declared-topic intake to the existing Bill 2 pipeline (the fail-closed state machine of s. 12), so an automated legislature advances a policy proposal end-to-end without a new mechanism. The fork-to-court step reuses the existing escalation ladder and the citator fast-path (Bill 2 s. 15, s. 18; CASE-LAW s. 11(c)), firing only on a recorded trigger so the benches do not convene on an ordinary proposal. The public/private split keeps the volatile facts (allowlists, signers, thresholds, windows, endpoints) in the ministry's private registry and off the face of the law, so the principles endure while the facts evolve (s. 7; Bill 27 s. 5A). The worked examples ([2026] REALM-SI 2 and [2026] REALM-SI 5) show the process already operating; this Act records it. This will work. It has my assent.

Vote: 4 ayes, 0 nays. The Bill passes (≥ 3 ayes); no second round required.

Royal Assent

*Royal Assent granted by the Sovereign Founder on 2026-06-06 ("proceed all"). This Act is now **in force** per its commencement (s. 2) and is recorded in **statutes/**. The policy-arm process is codified: every ministry holds a policy arm that proposes and does not legislate; a ministerial policy proposal is referred to the Standing Committee, which is the sole drafter, and the Sovereign is the sole enactor; a genuine first-impression fork goes to the court before drafting; a proposal's mechanics and principles are public while its operational facts stay in the ministry's private registry; and the owning ministry implements and remedies the enacted instrument as engineering it owns, the force coming from the enactment. The amendments to Bill 5 (new s. 19) and Bill 2 (new s. 13A) take effect now on the append-with-supersede rule.*